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CAUSE NO. _____	
JAMES WHITE, Plaintiff,	IN THE DISTRICT COURT
v.	<u>62nd</u> JUDICIAL DISTRICT
SHALESIA LOUDEN AND MARTIN TRANSPORTATION SYSTEMS INC., Defendants.	FRANKLIN COUNTY, TEXAS

PLAINTIFF'S ORIGINAL PETITION

TO THE HONORABLE JUDGE OF SAID COURT:

COMES NOW, JAMES WHITE, Plaintiff, and files Plaintiff's Original Petition, complaining of, SHALESIA LOUDEN AND MARTIN TRANSPORTATION SYSTEMS INC., Defendants, and would show unto the Court as follows:

I. DISCOVERY PLAN

1. This suit is governed by discovery control plan II under Rule 190.3 of the Texas Rules of Civil Procedure.

II. PARTIES

2. Plaintiff, JAMES WHITE, is an individual who resides at 168 Carolyn Road, Mabank, Henderson County, Texas 75156.

3. Defendant, SHALESIA LOUDEN, is an individual who resides at 1401 Woolridge Court, Benton, Saline County, Arkansas 72019, and may be served with process at that address or wherever she may be located. Citation is requested for this Defendant and service will be completed by a private process server.

4. Defendant, MARTIN TRANSPORTATION SYSTEMS INC., is an out of state corporation that may be served with process through its registered agent for service, Corporation Service Company D/B/A CSC-Lawyers Inco, at 211 E 7th Street, Suite 620, Austin, Texas 78701. Citation is requested for this Defendant and service will be completed

by a private process server.

III. JURISDICTION & VENUE

5. The Court has continuing jurisdiction over Defendants, because Defendant, Shalesa Loudon, committed a tort within the State of Texas, and Defendant, Martin Transportation Systems Inc., maintains substantial and continuing contacts with the State of Texas. The Court has jurisdiction over the controversy, because the damages are within the statutory jurisdictional limits of the Court.

6. Venue is proper in Franklin County, Texas, because all or a substantial part of the events or omissions giving rise to the claim occurred in Franklin County.

IV. FACTS

7. This lawsuit results from an automobile collision that occurred on or about January 4, 2022, on Highway 30 in Mount Vernon, Franklin County, Texas. Plaintiff, James White, was traveling eastbound on Highway 30. Defendant was traveling in the adjacent lane. Defendant, Shalesa Loudon, failed to be attentive, failed to maintain a single lane, made an unsafe lane change, and struck Plaintiff's vehicle. At the time of the collision, Defendant, Shalesa Loudon, was acting in the course and scope of her employment with Defendant, Martin Transportation Systems Inc. As a result of the impact, Plaintiff suffered bodily injury and loss of earning capacity.

V. NEGLIGENCE

8. Defendant, Shalesa Loudon, and Defendant, Martin Transportation Systems Inc., vicariously, had a duty to exercise ordinary care and operate the vehicle reasonably and prudently and failed to do so. Defendants were negligent in at least the following respects:

a. Failure to maintain a proper lookout;

- b. Failure to make such application of the brakes as a person using ordinary care would have made;
- c. Failure to maintain proper control of the vehicle under the conditions then and there existing;
- d. Failure to turn the vehicle to the right or left to avoid the collision;
- e. Traveling at an unsafe speed; and
- f. Failure to maintain an adequate distance between the vehicle and the vehicle driven by Plaintiff.

VI. RESPONDEAT SUPERIOR

9. At the time of the accident, Defendant, Shalesa Louden, was the agent, servant, and employee of Defendant, Martin Transportation Systems Inc., and was acting within the scope of her authority as such agent, servant, and employee. Defendant, Martin Transportation Systems Inc. is liable to Plaintiff for the negligence of Defendant, Shalesa Louden, under the common law doctrine of *respondeat superior*.

VII. DAMAGES

10. As a proximate result of Defendants' negligence, Plaintiff suffered bodily injury and loss of earning capacity. Plaintiff suffered the following damages:

- a. Physical pain and mental anguish in the past and future;
- b. Medical expenses in the past and future;
- c. Physical impairment; and
- d. Loss of earning capacity.

VIII. PRAYER

WHEREFORE, PREMISES CONSIDERED, Plaintiff, JAMES WHITE, respectfully requests that Defendants, SHALESA LOUDEN AND MARTIN TRANSPORTATION

SYSTEMS INC., be cited to appear and answer, and on final trial, that Plaintiff have judgment against Defendants for:

- a. Actual damages;
- b. Prejudgment and post-judgment interest as allowed by law;
- c. Costs of suit;
- d. Monetary relief over \$250,000 but not more than \$1,000,000; and
- e. Any further relief, either in law or equity, to which Plaintiffs are justly entitled.

IX. RULE 193.7 NOTICE

Pursuant to Rule 193.7 of the Texas Rules of Civil Procedure, Plaintiff gives notice that documents produced by any party to this case may be used at any pretrial proceeding or at the trial of this matter.

Respectfully submitted,

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/s/ James Bauguss III

by: James Bauguss III
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ATTORNEYS FOR PLAINTIFF